

22CMCV00709 22CMCV00709

County: los-angeles

Division: Civil Law and Motion

Department: A

Hearing date: 2026-08-19

Motion: PLAINTIFF'S MOTION TO SUBSTITUTE SUCCESSOR IN INTEREST

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Case Number: 22CMCV00709 Hearing Date: August 19, 2026 Dept: A

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL DISTRICT

A.B.,

Plaintiff,

vs.

DOE 1,

Defendant.

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CASE NO: 22CMCV00709

[TENTATIVE]

ORDER RE: PLAINTIFF'S MOTION TO SUBSTITUTE SUCCESSOR IN INTEREST

Dept.

A

DATE:

August 19, 2026

TIME:

8:30 A.M.

COMPLAINT

FILED: 12/19/2022

1st

AMENDED COMPLAINT FILED: 03/20/2023

TRIAL:

None set

MOVING

PARTY: Plaintiff A.B.

RESPONDING

PARTY: None

1.

Background

This is a childhood sexual assault revival action filed pursuant to Code of Civil Procedure § 340.1. Plaintiff A.B. ("Plaintiff") alleges that defendant Los Angeles Unified School District ("District") breached its duty of care to Plaintiff when he was a student at Alan LeRoy Locke High School. Plaintiff alleges that District knew or should have known of Plaintiff's abuse by a teacher at Alan LeRoy Locke High School ("Locke"), Jack Jacobson ("Jacobson"), and that District failed to supervise Jacobson to prevent his abuse of Plaintiff. Plaintiff alleges causes of action for negligence and negligent hiring, retention, and supervision against District.

2.

Discussion

Plaintiff, through his counsel, moves to substitute Kim Roberts Bennett as the plaintiff in this action. Plaintiff's counsel, attorney Elan B. Zektser ("Counsel"), contends that Plaintiff passed away on May 25, 2026 and that Kim Roberts Bennett is Plaintiff's successor in interest. No parties have opposed this motion.

"A cause of action that survives the death of the person entitled to commence an action or proceeding passes to the decedent's successor in interest ... and an action may be commenced by the decedent's personal representatives or, if none, by the decedent's successor in interest." (Code Civ. Proc. § 377.30.) After the death of a Plaintiff, the Court, on motion, shall allow a pending action that does not abate to be continued by the decedent's personal representative or successor in interest. (Code of Civ. Proc. § 377.31.)

Multiple successors in interest may may collectively substitute for a decedent.
(See *In re Marriage of Drake* (1997) 53 Cal.App.4th 1139.)

The person who seeks to commence or continue a pending action as the decedent's successor in interest shall execute and file an affidavit or declaration that includes (1) the decedent's name; (2) the date and place of decedent's death; (3) "No proceeding is now pending in California for administration of the decedent's estate"; (4) a copy of the final order showing the distribution of the decedent's cause of action to the successor in interest, if the decedent's estate was administered; (5) either the declarant is the decedent's successor in interest or the declarant is authorized to act on behalf of the decedent's successor in interest, with facts in support thereof; (6) "No other person has a superior right to commence the action or proceeding or to be substituted for the decedent in the pending action or proceeding"; and (7) that the statements are true, under penalty of perjury. (Code Civ. Proc. § 377.32, subd. (a).) The affidavit or declaration must attach a certified copy of the decedent's death certificate. (Code Civ. Proc. § 377.32, subd. (c).)

Kim Roberts Benett has provided a declaration stating Plaintiff's name; that Plaintiff passed away on May 25, 2026 in Las Vegas, Nevada; that no proceeding is pending in California for administration of Plaintiff's estate; that they are Plaintiff's successor in interest; that no other person has a superior right to be substituted for Plaintiff in the pending action; and that their statements are true under penalty of perjury. Kim Roberts Bennett has also provided a certified copy of Plaintiff's death certificate. Kim Roberts Bennett has declared that they are Plaintiff's surviving spouse. This constitutes sufficient facts to support a statement that Kim Roberts Bennett is Plaintiff's successor in interest.

Accordingly, Kim Roberts Bennett has fulfilled all requirements of Code of Civil Procedure § 377.32. The court will therefore grant the instant motion.

3.

Conclusion

Based on the foregoing, the court GRANTS Plaintiff's motion to substitute Kim Roberts Bennett as successor in interest for Plaintiff.

Plaintiff Kim Robert Bennett is ordered to
give notice.

IT IS SO ORDERED.

DATED: August 19, 2026

Hon. Elizabeth L. Bradley

Judge of the Superior Court